

ORIGINAL

(S E R V E D)
(FEBRUARY 27, 1992)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

February 27, 1992

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

**ASSERTION OF WORK PRODUCT AND ATTORNEY-CLIENT
PRIVILEGE OVERRULED AND MOTION TO COMPEL GRANTED**

Complainants seek an order requiring Sea-Land Service, Inc. (Sea-Land) to furnish documents reflecting the shipment histories of two Sea-Land customers, one, the Military Sealift Command (MSC), an intervener here, and the other, Ben Franklin Stores (BF), a non-party to this proceeding.

Complainants challenge all shipments made by Sea-Land on and after June 23, 1989, as actually being within the jurisdiction of the FMC. The actual physical movement of the shipment is asserted to be determinative for jurisdictional purposes.

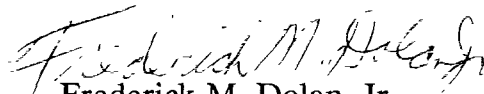
Sea-Land has previously been ordered by Judges Morgan and Ingolia to provide a list of all shipments and supporting documentation, not merely those related to complainants, pertaining to the movement of a Guam-based container to and through Sea-Land's West Coast port facilities after June 22, 1989. Sea-Land furnished data as to complainants but not as to MSC and BF which complainants now seek by a motion to compel.

Sea-Land claims a work product privilege asserting that the sought documents were prepared at the direction and request of counsel in anticipation and evaluation of defenses to complainants' jurisdictional attacks on Sea-Land's ICC-tariffed status.

An issue in the proceeding is the manner in which service is provided from origin to destination in connection with Sea-Land from the United States to Guam. The information sought is now shown to exist elsewhere than in Sea-Land's possession. It has been previously ordered to make the data available and complainants' motion will be granted. Sea-Land's claim of a work product privilege is overruled.

It is Ordered:

Complainant's motion to compel, dated November 12, 1991, is granted, and Sea-Land is directed to comply with complainants' document product requests 2 and 3 of Complainants' Fourth Set of Interrogatories and Requests for the Production of Documents to Sea-Land Service, Inc., dated September 9, 1991.


Frederick M. Dolan, Jr.
Administrative Law Judge